

KINETRACE

Terms of Service

Last Updated: July 2026

PLEASE READ THESE TERMS CAREFULLY. THEY CONTAIN IMPORTANT DISCLAIMERS, A RELEASE OF LIABILITY, AND AN ASSUMPTION OF RISK RELATING TO PHYSICAL ACTIVITY.

1. Acceptance of Terms

These Terms of Service ("Terms") constitute a legally binding agreement between you ("you," "your," or "User") and KineTrace ("KineTrace," "we," "us," or "our") governing your access to and use of the KineTrace website, application programming interfaces, dashboards, and any related software, tools, or services (collectively, the "Service").

By accessing or using the Service — including uploading movement data files, viewing motion analytics, participating in physical trial collections, or otherwise interacting with any component of the Service — you acknowledge that you have read, understood, and agree to be bound by these Terms and by our Privacy Policy, which is incorporated herein by reference. If you do not agree to these Terms in their entirety, you must not access or use the Service.

If you are accessing or using the Service on behalf of an organization, institution, or other entity, you represent and warrant that you have the authority to bind that entity to these Terms, and "you" and "your" will refer to that entity as well as you individually.

2. Definitions

- "Service" means the KineTrace platform, including its website, dashboard, APIs, machine learning models, and any associated documentation.
- "Content" means any data, files, measurements, text, or other materials uploaded to, generated by, or displayed within the Service.
- "User Data" means any sensor logs, CSV files, demographic information, or other Content that a User uploads or submits to the Service.
- "Trial Collection" means any in-person or remote session in which physical movement data is captured from a participant for use with the Service.
- "Developer" means the individual or team that designs, operates, and maintains KineTrace.

3. Description of Service

KineTrace is an experimental, software-demonstration platform that utilizes machine learning algorithms to process kinematic sensor data — such as accelerometer and gyroscope metrics — for the purposes of activity classification and movement pattern analysis. The Service is made available solely for educational, portfolio, research, and demonstration purposes.

KineTrace is a work in progress. Features, models, and analyses may be added, removed, or modified at any time without prior notice, and outputs of the Service should be understood as experimental in nature rather than validated, clinical-grade, or production-ready results.

4. Eligibility

You must be at least 18 years of age, or the age of legal majority in your jurisdiction, to use the Service. By using the Service, you represent and warrant that you meet this requirement. The Service is not directed to, and should not be used by, individuals under the age of 18. If we become aware that we have collected data from a person under this age without appropriate consent, we will take reasonable steps to delete that data.

If you are participating in a Trial Collection through a school, club, or organizational setting where a supervising adult has arranged for participation by minors, that supervising adult is solely responsible for obtaining any consents required by law and for ensuring appropriate oversight of the activity.

5. Medical & Physical Activity Disclaimer

KINETRACE IS NOT A MEDICAL DEVICE AND DOES NOT PROVIDE MEDICAL ADVICE, DIAGNOSIS, OR TREATMENT.

The metrics, analyses, predictions, classifications, and reports generated by KineTrace are based on experimental algorithms and are provided for informational and demonstration purposes only. KineTrace is not designed, intended, certified, or approved by any regulatory authority to diagnose, treat, cure, mitigate, or prevent any injury, disease, medical condition, or physical impairment.

Nothing produced by the Service should be interpreted as, or used as a substitute for, professional medical advice, biomechanical assessment, physical therapy, athletic training guidance, or any other professional consultation. You should always seek the advice of a qualified physician, physical therapist, or other licensed professional with any questions you may have regarding a medical condition or before beginning any physical activity or exercise program.

Do not disregard, delay, or discontinue professional medical advice because of anything generated by the Service.

6. Assumption of Risk & Safety

6.1 Voluntary Participation

Engaging in physical movements — including but not limited to walking, jogging, sprinting, jumping, climbing stairs, or any other activity associated with data collection or software evaluation — is entirely voluntary. You may withdraw from any Trial Collection or physical activity at any time, for any reason, without penalty.

6.2 Physical Risk

You acknowledge and agree that physical exercise and movement carry inherent risks, including but not limited to the risk of bodily injury, strain, fatigue, falls, or emotional distress. You represent that you are physically fit and free of any condition that would prevent your safe participation in the physical actions performed while capturing data for the Service, and that you have consulted a physician if you have any concerns about your fitness to participate.

6.3 Release and Assumption of Liability

To the fullest extent permitted by applicable law, you expressly assume all risk of injury, loss, damage, or death resulting from your physical participation in any activity related to the Service or your reliance on any output of the Service, and you agree to release, discharge, and hold harmless KineTrace, its Developer, operators, contributors, and affiliates from any and all claims, demands, or causes of action arising from or related to such participation or reliance.

This release does not apply to the extent prohibited by law, including with respect to gross negligence, willful misconduct, or other liability that cannot lawfully be disclaimed.

7. User Data: Trial Collection Data & Website Uploads

KineTrace treats two categories of User Data differently, and it is important to understand which one applies to you.

7.1 Your Representations

If you provide sensor logs, CSV files, or demographic information to KineTrace — whether as a Trial Collection participant or as a website visitor uploading a file — you represent and warrant that:

- You own or otherwise have the necessary rights, licenses, and permissions to provide and share such data;
- Such data does not contain personally identifiable health information tied to an actual legal name without the consent of the individual to whom the data relates; and
- Your provision and use of the data complies with all applicable laws, including any laws relating to the privacy of third parties whose data may be reflected in it.

7.2 Trial Collection Data — License Grant

By participating in or submitting data from a Trial Collection, you grant KineTrace a non-exclusive, worldwide, royalty-free, sublicensable license to host, store, process, analyze, and use anonymized movement data to train, evaluate, test, and improve machine learning models and other aspects of the Service. This license survives deletion of your account solely to the extent that data has already been irreversibly anonymized and aggregated such that it can no longer be associated with you.

7.3 Website Uploads — Session-Only Processing, No Training Use

If you upload a file directly through the KineTrace website to view your own analytics, that file is processed only to generate and display results back to you during that browser session. It is not merged with Trial Collection Data, not added to any training dataset, and not retained by KineTrace beyond the session — it is automatically deleted when you close or navigate away from the page. You do not grant KineTrace any license to use a Website Upload for model training or any purpose beyond generating your session's results, and no such license is needed since the file is not retained afterward.

7.4 Data Removal

Because Website Uploads are already deleted at the end of your session as described in Section 7.3, there is typically nothing left to remove once you close the page. Trial Collection participants may request deletion of their associated data by contacting the Developer as described in Section 22 (Contact Information); we will make commercially reasonable efforts to honor such requests, subject to the technical and legal limitations described in our Privacy Policy.

8. Acceptable Use

You agree not to, and not to permit any third party to:

- Use the Service for any unlawful purpose or in violation of any applicable local, state, national, or international law or regulation;
- Upload data that you do not have the right to upload, or that infringes the intellectual property, privacy, or other rights of any third party;
- Attempt to reverse-engineer, decompile, or extract the underlying machine learning models, source code, or algorithms of the Service, except to the extent such restriction is prohibited by applicable law;
- Interfere with or disrupt the integrity or performance of the Service, including through introduction of malware or excessive automated requests;
- Misrepresent Service outputs as validated medical, diagnostic, or clinical conclusions to any third party; or

- Use the Service to make decisions regarding employment, credit, insurance, healthcare eligibility, or any other consequential decision about a real person without independent, qualified human review.

We reserve the right to investigate and take appropriate action against anyone who, in our sole discretion, violates this Section, including removing content, suspending access, and reporting conduct to law enforcement authorities where appropriate.

9. Intellectual Property Rights & Source-Available Code

KineTrace's source code is published and made available under the PolyForm Noncommercial License 1.0.0 (or such other license as may be posted alongside the source repository at the time of your use). The PolyForm Noncommercial License grants rights to use, copy, and modify the source code, but strictly forbids using it for any commercial purpose. To the extent of any conflict between these Terms and that license with respect to the source code itself, the PolyForm Noncommercial License controls for the code, while these Terms continue to govern your use of the hosted Service, including any Trial Collection activities and the license grant in Section 7.2.

Because the source code is publicly available on a noncommercial basis, any person may inspect, copy, modify, reconstruct, or independently deploy KineTrace's processing pipeline for noncommercial purposes in accordance with the PolyForm Noncommercial License. Commercial use of the source code — including as part of a product or service offered for a fee, or otherwise intended for or directed toward commercial advantage or monetary compensation — is not permitted under that license. If you deploy an independent copy of KineTrace's code, that deployment is not the "Service" for purposes of these Terms, and KineTrace is not responsible for, and disclaims all liability arising from, any such independent deployment.

Notwithstanding the availability of the source code, KineTrace's trademarks, logos, and brand elements are not licensed under the PolyForm Noncommercial License and remain the property of KineTrace or its licensors. You retain all ownership rights you may have in User Data that you provide, subject to the license granted in Section 7.2.

10. Third-Party Services & Links

The Service may rely on or link to third-party infrastructure providers and services, including but not limited to cloud hosting and deployment providers identified in our Privacy Policy. KineTrace does not control and is not responsible for the content, policies, or practices of any third-party service. Your use of any third-party service referenced by or linked from the Service is at your own risk and subject to that third party's own terms and policies.

11. Disclaimer of Warranties

THE SERVICE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, KINETRACE EXPRESSLY DISCLAIMS ALL WARRANTIES, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, ACCURACY OF PREDICTIONS OR ANALYTICS, SYSTEM UPTIME, DATA ACCURACY, AND FREEDOM FROM VIRUSES OR OTHER HARMFUL COMPONENTS.

KineTrace does not warrant that the Service will be uninterrupted, timely, secure, or error-free, that defects will be corrected, or that the results obtained from use of the Service will be accurate or reliable. Any material downloaded or otherwise obtained through use of the Service is accessed at your own discretion and risk.

12. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL KINETRACE, ITS DEVELOPER, OPERATORS, CONTRIBUTORS, OR AFFILIATES BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, DATA, GOODWILL, OR OTHER INTANGIBLE LOSSES, ARISING FROM OR RELATED TO YOUR USE OF, OR INABILITY TO USE, THE SERVICE, YOUR PARTICIPATION IN ANY TRIAL COLLECTION OR PHYSICAL ACTIVITY, OR ANY RELIANCE PLACED ON SERVICE OUTPUTS, WHETHER BASED ON WARRANTY, CONTRACT, TORT (INCLUDING NEGLIGENCE), OR ANY OTHER LEGAL THEORY, EVEN IF KINETRACE HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, KINETRACE'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICE SHALL NOT EXCEED THE GREATER OF (A) THE TOTAL AMOUNT, IF ANY, PAID BY YOU TO KINETRACE FOR USE OF THE SERVICE IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM, OR (B) ZERO DOLLARS (\$0.00), AS THE SERVICE IS PROVIDED FREE OF CHARGE.

Some jurisdictions do not allow the exclusion or limitation of certain warranties or liabilities, so some of the above limitations may not apply to you. In such jurisdictions, KineTrace's liability will be limited to the greatest extent permitted by applicable law.

13. Indemnification

You agree to defend, indemnify, and hold harmless KineTrace, its Developer, operators, contributors, and affiliates from and against any claims, liabilities, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or in any way connected with: (a) your access to or use of the Service; (b) your violation of these Terms; (c) User Data you upload; or (d) your violation of any rights of a third party, including in connection with a Trial Collection you conduct or supervise.

14. Term and Termination

These Terms remain in effect for as long as you access or use the Service. We may suspend or terminate your access to the Service at any time, with or without cause or notice, including if we believe you have violated these Terms. You may stop using the Service at any time.

Sections of these Terms that by their nature should survive termination — including Sections 5, 6, 7.2, 9, 11, 12, 13, 17, and 22 — will survive any termination or expiration of these Terms.

15. Modifications to the Service and These Terms

We may modify, suspend, or discontinue the Service, in whole or in part, at any time without liability. We may also revise these Terms from time to time. If we make material changes, we will update the "Last Updated" date above and, where appropriate, provide additional notice. Your continued use of the Service after any revision becomes effective constitutes your acceptance of the revised Terms.

16. Governing Law and Dispute Resolution

These Terms and any dispute arising out of or related to them or the Service will be governed by the laws of the jurisdiction in which KineTrace's Developer resides or is organized, without regard to its conflict-of-laws principles. The parties agree to first attempt to resolve any dispute informally by contacting one another in good faith before pursuing formal legal action. Nothing in this Section limits either party's right to seek injunctive or other equitable relief.

17. Severability

If any provision of these Terms is held to be invalid, illegal, or unenforceable, that provision will be limited or eliminated to the minimum extent necessary, and the remaining provisions will continue in full force and effect.

18. Entire Agreement; No Waiver

These Terms, together with our Privacy Policy, constitute the entire agreement between you and KineTrace regarding the Service and supersede all prior or contemporaneous understandings regarding its subject matter. No waiver of any term of these Terms will be deemed a further or continuing waiver of such term or any other term.

19. Assignment

You may not assign or transfer these Terms, by operation of law or otherwise, without KineTrace's prior written consent. KineTrace may assign these Terms without restriction, including in connection with a merger, acquisition, reorganization, or sale of assets.

20. Force Majeure

KineTrace will not be liable for any failure or delay in performance resulting from causes beyond its reasonable control, including acts of God, natural disaster, power or internet outages, war, terrorism, labor disputes, or governmental action.

21. Export and Legal Compliance

You agree to comply with all applicable export control and economic sanctions laws and regulations in your use of the Service, and represent that you are not located in, or a resident of, any country or region subject to comprehensive sanctions, and are not on any restricted party list, to the extent required by applicable law.

22. Contact Information

Questions, notices, or requests regarding these Terms should be directed to the KineTrace Developer through the contact channel designated on the KineTrace website or application.